

2	Center for Natural Lands Management vs. City of Dana Point 2021-01219668	Cross- Defendant’s Motion to Dissolve or in the Alternative to Modify the Preliminary Injunction The Center for Natural Lands Management’s (“CNLM”) motion to dissolve or modify the preliminary injunction previously entered in this matter is GRANTED. The preliminary injunction is modified to provide that operating hours for the nature trail in the Dana Point Preserve (“Trail”) shall correspond to the interim hours set forth in section 4 of the California Coastal Commission’s Consent Cease and Desist Order CCC-26-CD-02 (“Consent Order,” CNLM RJN, Ex. K). CNLM shall prepare and circulate a revised preliminary injunction in accordance with this ruling. EVIDENTIARY MATTERS CNLM’s request for judicial notice of Exhibits A-O is granted, both for the exhibits’ existence and insofar as they set forth the positions of the government agencies who authored them, but not for the truth of the matters set forth therein. (See <i>American Indian Model Schools v. Oakland Unified School Dist.</i> (2014) 227 Cal.App.4th 258, 293.) The City of Dana Point’s request for judicial notice of Exhibits 1-3 is granted. CNLM’s objections to the declaration of A. Patrick Muñoz are overruled. GROUND FOR RULING I. <u>Brief Background</u> This is one of three cases arising from a dispute between CNLM and the City about the operating hours for the Trail. CNLM owns and operates the Dana Point Preserve and is responsible for managing the Trail. Prior to the COVID-19 pandemic, the Trail was open from 7 a.m. until dusk, seven days a week. The Trail was shut down for a period of time after the pandemic began. CNLM eventually reopened it with reduced hours of operation. The City believed the Trail should be open for its full pre-pandemic hours and began issuing administrative citations against CNLM. CNLM responded by filing this case against the City. The City cross-claimed against CNLM. In September 2022, Judge Strickroth, to whom the case was then assigned, granted the City’s motion for a preliminary injunction requiring CNLM to operate the Trail at pre-pandemic hours. The minute order granting the City’s motion explained that the reduction in hours was a “development” that required a coastal
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	development permit (“CDP”) under the Coastal Act. (Public Resources Code § 30000 et seq.) Because no CDP had been obtained for the reduced hours, the City had shown a prima facie violation of the Coastal Act, and injunctive relief was appropriate under Pub. Resources Code § 30803. CNLM then applied for a CDP. In response, the City ordered preparation of a Subsequent Environmental Impact Report (SEIR). CNLM believed the City’s requirement of a SEIR violated CEQA. Accordingly, it filed the second case, a writ petition challenging the City’s actions under CEQA. CNLM also pursued a second path for relief. It negotiated the Consent Order with the Coastal Commission, which the Commission approved on March 12, 2026. The Consent Order provides that until a CDP for Trail access hours is approved, CNLM will operate the Trail at specified reduced hours. The City believed the Commission lacked jurisdiction to begin enforcement proceedings against CNLM, meaning the Consent Order was a nullity. Accordingly, the City filed the third case, a mandamus challenge to set aside the Consent Order. II. <u>Standard of Review</u> CNLM moves to dissolve or modify the preliminary injunction on the grounds of a material change in facts, to wit, the adoption of the Consent Order. CCP § 533 provides: “In any action, the court may on notice modify or dissolve an injunction or temporary restraining order upon a showing that there has been a material change in the facts upon which the injunction or temporary restraining order was granted, that the law upon which the injunction or temporary restraining order was granted has changed, or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order.” III. <u>Discussion</u> The preliminary injunction was entered pursuant to Pub. Resources Code § 30803(a) based on the City’s argument that CNLM’s actions regarding trail hours violated the Coastal Act. (ROA 200; ROA 168 p. 1) Section 30803(a) provides, “On a prima facie showing of a violation of this division, preliminary equitable relief shall be issued to restrain any further violation of this division.” Judge Strickroth found the City had made a prima facie showing of such a violation. His minute order explained that anyone who undertakes a “development” in the coastal zone must obtain a CDP; that “development” includes a change in the intensity of use of land; that it was undisputed CNLM’s reduction in Trail operating hours reduced the intensity of use of land; and
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	that it was undisputed CNLM hadn’t obtained a CDP for the reduction in hours. As a result, injunctive relief was proper. The Consent Order materially changes these facts. “The Commission has the ultimate authority to ensure that coastal development conforms to the policies embodied in the state’s Coastal Act.” (<i>Charles A. Pratt Construction Co., Inc. v. California Coastal Com.</i> (2008) 162 Cal.App.4th 1068, 1075.) Furthermore, “[t]he [C]ommission, unless specifically otherwise provided, shall have the primary responsibility for the implementation of the provisions of this division.” (Pub. Resources Code § 30330.) The City has long relied on the Coastal Commission’s actions in support of its position. Its 2022 motion for a preliminary injunction relied in part on the Commission’s November 4, 2021, letter to CNLM stating that the Coastal Act required obtaining a coastal development permit. (ROA 97) In its supplemental brief filed in support of the preliminary injunction request, the City argued: “The Commission is charged with implementing the Act’s provisions, and ‘is in many respects the heart of the Coastal Act.’” (<i>Fudge v. City of Laguna Beach</i> (2019) 32 Cal.App.5th 193, 200-201.) The Commission believes that CNLM has violated the Act. Its position is backed by solid law and facts and is entitled to great deference.” (ROA 168, p. 11) Now, through the Consent Order, the Commission has determined that on an interim basis—until final approval of a CDP—reduced hours are appropriate. That is, there is no Coastal Act violation if hours are reduced pending a final CDP. Accordingly, the Court will modify the preliminary injunction to require CNLM to keep the Trail open as set forth in the Consent Order. The Court acknowledges the City’s argument that the Commission acted in excess of its jurisdiction in adopting the Consent Order. As the City acknowledges, that argument is the subject of a separate legal challenge. Unless and until that challenge is decided in the City’s favor, the Consent Order is valid. To the extent that the City contends that the Court should not defer to the Commission’s Consent Order because doing so would mean that “the Court [is] issu[ing] its own de-facto CDP establishing new, restricted access hours for the Trail,” the Court disagrees. (ROA 524, p. 8) To be clear, today’s ruling is limited to modifying the preliminary injunction in accordance with the Coastal Commission’s order. The Court sees no reason to substitute its own judgment about how best to balance the various interests implicated here for that of the Commission. Doing so would raise the same separation-of-powers issues the City complains about in its opposition.
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